

**THE MAGNA CARTA OF STUDENTS
OF
BULACAN STATE UNIVERSITY**

GENERAL PROVISION

SECTION 1. *Title.* – This Document shall be known as the “Magna Carta of Students of Bulacan State University.”

SECTION 2. *Declaration of policy.* – It is the duty of the Student Government of Bulacan State University to promote and defend the students’ rights and welfare, and recognize them as human, inherent, and fundamental rights.

However, the University Administration must strictly adhere and respect the proper implementation of Republic Act No. 10931 particularly in the policy of collection of fees from students.

It is the essence of Republic Act No. 10931 that the students of Bulacan State University shall be protected from unauthorized collection and mandatory fees of any form or nature.

The Student Government recognizes the fundamental right of every student of Bulacan State University to a gender sensitive environment. This recognition is manifested in the conduct and non-discriminatory practices of the studentry with liberty to freely affirm their Sexual Orientation and Gender Identity and Expression in various socially acceptable ways and avenues, with active mechanism to address and resolve grievances, and conduct programs and activities that responsibly empower all genders.

The State recognizes that it is the basic right of all Filipinos to a mental health friendly environment which shall include full accessibility to quality health care services especially in learning institutions as said establishments may evoke factors that are detrimental to the mental and psychological health of its constituents.

As a matter of right, the students of the Bulacan State University shall be accorded with instructional and effective awareness and care for their mental and psychological health with a mental-health friendly environment and readily available, abundant, high quality, and culturally appropriate mental health services.

The students of the Bulacan State University Administration must be free from discriminatory practices, particularly those diagnosed with mental health conditions who must be given equal opportunity to participate in curricular and extra-curricular activities, without any form of marginalization and stigmatization.

The Bulacan State University Administration shall denounce and prohibit discriminatory practices towards students who are diagnosed with mental health conditions. It shall promote their human rights, and shall be given equal opportunity to participate in curricular and extra- curricular activities, free from marginalization and stigmatization.

The objectives of the Mental Health Act (R.A. No. 11036), the United Nations Declaration of Human Rights, and all other relevant policies and declarations of the State must be strictly observed by the entire BulSU Community.

The Student Government recognizes the hard work and peculiar situation of those, while studying at the same time is employed in a corporation, institution, is self-employed, or in any other means of employment. Hence, in recognition of their distinct but exemplar situation and it is only just to give them extended treatment in certain situations.

In recognition of working students and students who are self-employed, the Student Government implores that they be extended with certain latitude without sacrificing their quality of learning.

Republic Act No. 7079 or the Campus Journalism Act of 1991 provides that: “it is the declared policy of the State to uphold and protect the freedom of the press even at the campus level and promote the development and growth of campus journalism as a means of strengthening ethical values, encouraging critical and creative thinking, and developing moral character and personal discipline of the Filipino youth. In furtherance of this policy, the State shall undertake various programs and projects aimed at improving the journalistic skills of students concerned and promoting responsible and free journalism.” For its realization, the Student Government implores the Bulacan State University that best effort must be exerted to harmonize it with RA 10931 or the Universal Access to Quality Tertiary Education Law which forbids the collection of tuition and other fees, to allow existing campus publication and the conduct of trainings and other necessary seminar in pursuit of the freedom of the press.

The Student Government recognizes the importance of student-athletes in bringing prestige in their representation of Bulacan State University and shall be considered as assets that shall be given the proper recognition and support. The Student Government recognizes the importance of cultural performers that bring our university’s name during competitions and performances outside the premises of our institution, and it is only just they are given proper support and recognition.

SECTION 3. Guiding Principles. – The following shall be the basic guiding principles of this Act (Pursuant to Education Act of 1982 reiterated by the BulSU Student Handbook)

- a. The right to receive primarily through competent instruction relevant quality education in line with national goals and conducive to full development as persons with human dignity.
- b. The right to freely choose their field of study and to continue their course therein up to graduation except in case of academic deficiency or violation of disciplinary regulations.
- c. The right to school guidance and counseling services for making decisions and selecting the alternatives of work suited to his potentialities.
- d. The right to access to his own school records, the confidentiality of which the school shall maintain and preserve, however, students shall not be deprived of viewing and re-evaluating his/her class standing as reflected in the class record.
- e. The right to the issuance of official certificates, diplomas, transcript of records, transfer credentials and other similar documents within 30 days from request.
- f. The right to publish a student newspaper and similar publications, as well as the right to invite resource persons during convocation, symposium and other activities of similar nature, subject to such limitations under the law;

- g. The right to free expression of opinions and suggestions, and to effective channels of communication with appropriate academic and administrative bodies of the school institution.
- h. The right to form, establish, join and participate in organizations and societies recognized by the school to foster their intellectual, cultural, spiritual, and physical growth and development, or to form, establish, join and maintain organizations and societies for purposes not contrary to law.
- i. The right to participate in the formulation and development of policies affecting the school through Student Regent; and
- j. The right to be free from involuntary contributions, except those approved by their own organizations or societies, and as allowed by law.

SECTION 4. *Definition of terms*

- a. *Administrative Board* – Composed of student journalist tasked to facilitate, oversee, and execute programs, projects, and activities that is beneficial to the publication.
- b. *Asexual* – without sexual feelings or associations.
- c. *Bisexual* – sexually attracted not exclusively to people of one particular gender; attracted to both men and women.
- d. *Catcalling* – make a whistle, shout, or comment of a sexual nature to a woman passing by.
- e. *Discrimination* – the unjust or prejudicial treatment in terms of an individuals' gender preference.
- f. *Editorial Board* – Composed of duly recognized student journalists tasked to the direction of the released material.
- g. *Editorial Policies* – a set of guidelines implemented by the duly recognized Editorial Board;
- h. *Faculty* – composed of professors or instructors that have distinct and separate division per college.
- i. *Faculty Member* – A recognized member of a certain faculty.
- j. *Female* – is usually reserved for an adult; girl is the usual term for a female child or adolescent
- k. *Gay* – homosexual (used especially of a man)
- l. *Gender Expression* – is a person's behavior, mannerisms, interests, and appearance that are associated with gender in a particular cultural context, specifically with the categories of femininity or masculinity.
- m. *Gender Identity* – is the personal sense of one's own gender. Gender identity can correlate with assigned sex at birth or can differ from it. Gender identity can correlate with assigned sex at birth or can differ from it.
- n. *Gender Sensitive Conduct* – a manner of an individual that is politically and socially correct and is not offensive to all gender affiliations.
- o. *Gender Sensitive Dress-code* – a set of rules and regulations that is not in any form or manner, discriminatory and is a hindrance to an individuals' gender affirmation and expression through clothing and other paraphernalia.
- p. *Gender Sensitive Environment* – a condition of Bulacan State University in which all gender affiliations are treated with the same manner and does not practice discrimination in all forms.
- q. *Gender Sensitivity Desk* – A desk established and located at the Gender and Development Centre that is tasked to accommodate and resolve gender sensitive cases.
- r. *Intersexual* – relating to or having the condition of being intermediate between male and female.

- s. *Lasciviousness* – to describe a person's behavior that is driven by thoughts of sex.
- t. *Lesbian* – homosexual woman. The word lesbian is also used for women in relation to their sexual identity or sexual behaviour,
- u. *LGBTQ* – stands for "lesbian, gay, bisexual, transgender, intersex, queer/questioning, asexual and many other terms such as non-binary and pansexual
- v. *Male* – a man or a boy.
- w. *Mental health friendly environment* – A University which is free from stress-inducing tendencies and/or academic pressure, devoid of stigmatisation, imposes mentally and psychologically appropriate rules and policies, and conducts activities that are inclined towards a mental-health friendly institution.
- x. *Mental health services* – universally accessible and subsidised services that is established to aid, diagnosed or not, students and university employees, in terms of their mental and psychological condition.
- y. *Non- Binary* – gender identities that are not exclusively masculine or exclusively
- z. *Feminine* – identities that are outside the gender binary.
- aa. *Pansexual* – is the sexual, romantic or emotional attraction towards people regardless of their sex or gender identity. And also people may refer to themselves as gender-blind, asserting that gender and sex are not determining factors in their romantic or sexual attraction to others
- bb. *Perpetrator* – a student or any employee of the University that committed, either explicit or implicit, a sexual offence toward a constituent of the University.
- cc. *Psychiatrist* – a full-time psychiatrist hired by the Bulacan State University Administration to aid in the diagnosis and treatment of mental illness.
- dd. *Queer* – gender identities that are not exclusively masculine or exclusively feminine— identities that are outside the gender binary.
- ee. *Honorarium* – compensation given to a student assistant.
- ff. *Sexual Harassment* – Sexual harassment includes a range of actions from mild transgressions to sexual abuse or sexual assault of a faculty/employee to a student
- gg. *Sexual Orientation* – different from gender and gender identity, it is also about who you're attracted to and who you feel drawn to romantically, emotionally, and sexually
- hh. *Stigmatisation* – to brand someone or label someone, usually in a negative way.
- ii. *Student* – a bona fide student of Bulacan State University, whether under free tuition or those who chose opted-out.
- jj. *Student assistant* – a student that is rendering hours of service in the university, an administrator, or any other employee of the university.
- kk. *Student Journalist* – A bona fide student enrolled in Bulacan State University, who passed

and met the qualifications by the Editorial Board of a certain Student Publication

- ll. *Student Publication* – A group of students, be it college-based or university wide printed material that is independently published by, students, and which needs the meets the needs, interests of the student body.
- mm. *Textbook* – a book published by a faculty member which contains both work text and reference sections.
- nn. *Textbook development committee* – constituted with the sole task of evaluating, classifying, categorising, and approving workbook and textbook that are published by faculty members of the university.
- oo. *Transgender* – relating to a person whose sense of personal identity and gender does not correspond with their birth sex.
- pp. *Transsexual* – a person who emotionally and psychologically feels that they belong to the opposite sex.
- qq. *University Services* – Those commodities under the University premises that is available to the public.
- rr. *Victim* – a student or any other employee of the University who is a victim of any sexual offences or harassment
- ss. *Workbook* – a book published by a faculty member whose content is exclusive to work text or those which the students is tasked to answer.
- tt. *Working student* – a student that is employed in a corporation, institution, is self- employed, or any other means of employment at the same time enrolled in the University.

ARTICLE I

RIGHT AGAINST UNAUTHORIZED COLLECTION

SECTION 5. Scope. – These Rules shall apply to everyone in Bulacan State University which includes, but is not limited to the students, teachers, instructors, organizations and any other employee or entity under Bulacan State University.

SECTION 6. Definition. – Mandatory fees are charges imposed on students, directly or indirectly by a teacher, instructor, organization or individual, without authority from the school administration usually in exchange of academic privilege, such as, but not limited to:

- a. Additional point/s in quizzes, seat works, examinations, projects, or similar activities.
- b. Exemptions to quizzes, seat works, examinations, projects or similar activities.
- c. Any other activity that the university and student government may deem alike.

SECTION 7. Prohibited Acts. - It is prohibited for any teacher, instructor, organization, or individual, thus:

- d. Unauthorized Sale of Tickets – be it directly or indirectly, obliging their students to buy admission tickets to college nights, film viewing, and any other similar activity, be it co-curricular or extra-curricular in exchange of academic privilege.
- e. Unauthorized Sale of Textbooks – be it directly or indirectly, obliging their students to buy textbooks published by them or not in exchange of academic privilege.
- f. Mandatory Membership to Organizations – be it directly or indirectly, obliging their students or members to join an organization or renew their membership in exchange of academic privilege or any other incentive.
- g. Mandatory Assessment of Parents-Teacher Association Fee – be it directly or indirectly, obliging their students to pay for PTA Fee in exchange of academic privilege or include it in the enrolment process. Any collection from the parents must be on voluntary basis.
- h. Other Analogous Imposition which are either not in compliance with any of the provision of this Magna Carta – The collection of any fee by a teacher, instructor, organization or individual of Bulacan State University who, without the authority of the University’s administration, impose on their students’ mandatory fees not mentioned in the previous sections.

SECTION 8. *Textbook Development Committee Objective and Members.* – In order to assure that the textbooks produced by university faculty members are of good quality, free from plagiarism, copy right infringement, a Textbook Development Committee shall be established and shall have the following members.

The committee shall be composed of the following members:

- a. Chairperson: Vice President for Academic Affairs
- b. Vice – chairperson: Director for Education Development Office
- c. Members:
 - 1) Concerned Program Chair or Department Head
 - 2) Subject matter expert related to the subject

SECTION 9. *Powers and functions of the Committee.* – The committee shall have the power to review workbook or textbooks authored, published, or authored and published by faculty or staff members. They shall have the further authority to classify and categorize a piece of work as a textbook or workbook. Further, the committee shall have the sole authority to determine the price of a textbook or workbook. Furthermore, the committee in setting the fixed price, shall ensure the equitable profit for the university, fair author royalties, and lowest possible price for university students.

SECTION 10. *Prohibition on work text materials.* – work texts are those instructional materials, particularly those published by the faculty which contains tear off pages for activities. These tear off pages are often required to be submitted for completion of a course, the practice will prevent the reuse of work text as a reference material for succeeding students, as faculty members will mandate the use of original tear off pages and its submission as a course requirement. Hence, published materials, if will be prescribed shall be limited to a textbook without tear off pages, or a workbook which is a compilation of necessary activities for the course. However, if it cannot be avoided that in laboratory classes, the necessity of laboratory manuals or workbooks shall be to be indispensable

to the learning process. These materials shall be sold at the lowest possible price. Lastly, no faculty member shall be allowed to prescribe textbook/instructional materialist authored by his/her person or other faculty members in exchange for any academic gain or benefit of the students.

SECTION 11. *Sale of prescribe textbooks or workbooks* – In relation to Section 7 Paragraph (b), the sale of textbooks or workbooks should be transferred to a university bookstore with full transparency governing their transactions.

ARTICLE II

RIGHT TO A DISCRIMINATION-FREE AND GENDER SENSITIVE UNIVERSITY

SECTION 12. *Bulacan State University Gender Sensitive Conduct.* – The Bulacan State University Community, together with the Student Government, Gender and Development Office, and Office of Student Affairs shall ensure the safety and security of everyone. Collectively, the Bulacan State University Community denounces the following acts: (referred from R.A. No.7877 and Section 11 of R.A. No.11313)

- a. Catcalling, wolf-whistling or other non-verbal sexual gestures.
- b. Use of gender insensitive language:
 - 1) The non-usage of words associated with one's Sexual Orientation and Gender Identity and Expression as direct insult towards another.
 - 2) The direct inclusion in an individual's humor of rape, sexual harassment, exploitation, abuse, and any other form sexual offences.
 - 3) The direct stereotyping of genders or the frequent use of gender roles.
 - 4) The direct objectification of all genders to discriminate another.
 - 5) The non-usage of sexual languages that an individual may feel uncomfortable of hearing.
 - 6) And any other gesture the stated may deem alike.
- c. Discrimination in holding positions in organizations, Student Government, student groups, and societies.
- d. Verbal attack, discrimination, and stereotypes on students who affirms their sexual orientation, gender identity and expression through aligning their gender expression to their sexual orientation and other manner of clothing or wearing of physical paraphernalia that has been accustomed with the opposite sex.
- e. Discrimination on the access of University services by reason of one's Sexual Orientation and Gender Identity and Expression affiliation.

SECTION 13. *Gender Sensitive Dress Code.* – The students of Bulacan State University shall have the liberty to express their Sexual Orientation, Gender Identity and Expression by wearing their desired clothing as specified on the prohibition against the following: If any case that there is an existing college policy that prohibits such dress-code, as long as there is a legal basis, the college policy will prevail

- a) Sandals
- b) Tattered Jeans (rips must not be showing too much skin of an individual)
- c) Earrings (as long as it isn't causing any harm to other students or anyone in the

university)

- d) Hair Color
- e) Gender Affirmative Clothing
- f) Wearing P.E uniform inside classrooms and libraries

SECTION 14. *Gender Sensitivity Desk.* – The Gender and Development Center shall establish a gender sensitivity desk that is composed of the following members:

- a. GAD Gender Sensitivity Focal Person
- b. A Student Government Senator
- c. Advocates from each gender sector

SECTION 15. *Powers and Functions of the Gender Sensitivity Desk.*

- a. Accommodate and hear cases of sexual misconduct or offense of students with full confidentiality.
- b. Resolve said cases with speedy disposition guided by the university legal counsel
- c. Create and enact resolutions or ordinances that will help the University in resolving reoccurring gender sensitive problems.
- d. Conduct programs and activities that is beneficial to the community of Bulacan State University.
- e. Propagate campaigns that is aimed towards the promotion of a gender sensitive university.

SECTION 16. *Support and Assistance to Discrimination, Sexual Harassment and Offense Victims.*

- a. Victims of discrimination, sexual harassment or offenses shall have the following privileges and support given the presence of *prima facie* evidence: (Any other sanctions and punishment are stated in the codes of Student Board of Discipline and UBAC)
 - 1) Excused absences allotted for counseling and debriefing as recommended by the university legal counsel.
 - 2) A request for the removal or transfer of the victim to other section if the perpetrator is his/her classmate.
 - 3) A request for the removal or transfer of the victim to other section if the perpetrator is his/her professor.
 - 4) Immediate and direct assistance of University's legal counsel.

- 5) Immediate and direct assistance for mental health and psychological welfare program of the University.
- 6) Pecuniary assistance from the University for both students involved in the case.

SECTION 17. *Additional Penalty and Adjudication for Perpetrators.* – If the perpetrators, after due investigation by respective University units, have been found guilty of a violation of the provisions of R.A. No. 7877 (Anti Sexual Harassment Act of 1995) the victim may opt to file a separate and distinct civil, criminal, or administrative actions against the perpetrators, as the case may be.

- a. Perpetrators of this Resolution or any provision of Bulacan State University Student Handbook that violates the sexual orientation, gender identity and expression of an individual shall be subject to the following penalties:
 - a. Proper integration and education for the students involved in the case.
 - b. Suspension or expulsion depending on the degree of the offense committed if the student is proven guilty.
 - c. Community Service for the perpetrator.
 - d. Payment of moral damages to the victim.
 - e. Payment of other fees such as but is not limited to; attorney’s fees, mental health services, and any other services that are deemed necessary by the victimized party.
 - f. In any cases of repeated offense will resort to expulsion.

The above provision is without prejudice to the applicable provisions of the Student Manual.

- b. Any other violated laws such as the Revised Penal Code, Constitution, Violence against Women and Children, Magna Carta for Women and any other existing law or provision shall be adjudicated by the proper court.

SECTION 18. *Programs, Activities, Information and Campaign.* – The University, headed by the Gender Sensitivity Desk Committee Members, shall conduct activities and programs that is beneficial and empowering to the Bulacan State University Community, especially those who are victims or are being victimized under RA No. 7877, other penal statute, and Faculty/Student Manual. Furthermore, the University shall likewise, disseminate information and propagate campaigns about gender sensitivity, expression, and empowerment that is research and evidence-based, socially, politically, and culturally appropriate.

ARTICLE III

RIGHT TO A MENTAL HEALTH FRIENDLY UNIVERSITY

SECTION 19. *Objectives.* - The objectives of this document are as follows:

- a. Raise the appreciation and awareness of the students in Bulacan State University with regards to the sensitivity and importance of a mental health friendly University.
- b. The University shall formulate resolutions and ordinances that will aid in establishing readily available, abundant, effective, high-quality, and proactive mental health care services, activities, and projects that will meet the psychiatric, neurologic, and psychosocial needs of the students in the University.
- c. To aid and protect those who are diagnosed with mental health condition and ensure they are free from discrimination, marginalisation, and stigmatisation and shall have full access to the services of the University.
- d. To serve as a foundation and strengthen subsequent researches, dissertation and other similar analysis of mental health.

SECTION 20. *Accessibility of Services.* – Students, among others, shall be favored with all basic and Constitutional rights, as well as those commercial under the United Nations Declaration of Human Rights and Convention on the Right of Person with Disability and all other relevant international and regional human rights conventions and declarations, including rights to:

- a. Have full access of the established services regardless of their race, sex, gender affiliation, religion, cultural practices, and political beliefs.
- b. Access to quality, evidence, and research-based services.
- c. Access to speedy and abundant mental health services that is accessible to potential service-users anytime during school and non-school days.
- d. Access to mental health services that are commercial and free of charge, hence is not commercial nor commercialized.

SECTION 21. Funding is implored thru the University Administration, for the establishment of the following:

- a. Establish, per college, a guidance office with a full-time, experienced, competent guidance counsellor to aid students in their academic concerns, peer interactions and all other factors that may lead to psychological distress

- b. Establish partnership with hospitals for the psychiatric consultations of the students.
- c. The guidance office must be spacious enough and conducive to treatment sessions.
- d. There should be a peer group under the guidance office that shall conduct stress debriefing and support to *those who are in need*.

SECTION 22. *Quality of Services.* – In accordance with this document, quality mental health services must be free of charge and universally accessible. Thus, it is imperative for the following:

- a. The establishment of mental health/offices services based on research and evidence.
- b. That employees must strictly observe confidentiality in the conduct of these services, particularly the patients' name, condition/s, and other personal information.
- c. That university services must be student-friendly, culturally appropriate, and gender sensitive towards potential service-users.

ARTICLE IV

RIGHT OF WORKING STUDENTS AND STUDENT ASSISTANTS

SECTION 23. *Scope.* – This document shall apply to all working students and student assistants who are bona fide students of Bulacan State University.

SECTION 24. *Rights and privileges of Student Assistants.*

- a. Right to proper working conditions.
- b. Right to timely receive full amount of honorarium without unauthorized deductions
- c. Right against any form of harassment or exploitation.
- d. Right against involuntary service.
- e. Right to privacy.
- f. Right to sufficient breaks in between working hours.
- g. Right for a written agreement that defines the duties, working hours, and honorarium for his/her work.

SECTION 25. *Rights and privileges of Working Students.* – *Sui Generis* is a form of legal protection that exists outside typical legal protections – that is something that is unique or different. It does not rest on privilege but is founded on equity. Hence, it is the intention of this act to give equity to the peculiar situation of working students.

- a. Right to be duly recognized by the Bulacan State University Administration. This recognition shall be reflected in their Identification Card (ID) and Certificate of Recognition (COR).

- b. Right to be heard and be given consideration for justified work-related absences for up to five (5) times.
- c. Right to an extended 10-minute rule on tardiness in addition to the existing policy for up to five (5) times, nonconsecutively.
- d. Right to be excused in wearing the prescribed uniform in extreme cases.
- e. In addition to these extended rights the Board of Regents and University Administration shall encourage existing commercial ventures of the University to prioritize students at the University in recruiting employees and shall ensure that these commercial ventures are giving their employees rightful salary, benefits, and ensures proper working conditions.

SECTION 26. *Working Students' Alliance.* – In the objective to protect and forward the just and duly rights and privilege of student assistants and working students of the Bulacan State University, the Student Government believes their right to be represented and recognizes the collective will of the student assistants and working students to properly be represented as they themselves contribute towards the attainment of a working-student friendly university.

SECTION 27. The *alliance* shall function in accordance with the constitution of the Student Government, without prejudice to its formation of its executive committee. It shall be composed of the following officers:

- a. Chairperson
- b. Vice Chairperson for Working Students
- c. Vice Chairperson for Student Assistants
- d. Vice Chairman for Finance
- e. Secretary for Program and Education

SECTION 28. *Autonomy of the Alliance.* – The above-mentioned *alliance* shall enjoy autonomy from the Student Government subject to established limitations prescribed by both the University and the Student Government.

ARTICLE V

RIGHTS OF STUDENT JOURNALISTS

SECTION 29. *Duties of a Student Journalist and Publication under Campus Journalism Act of 1991:*

- a. To seek out the truth, in the interests of the public's right to know, whatever the consequences to him or herself
- b. To defend freedom of information, freedom of commentary and criticism, and the independence and dignity of the journalism
- c. Not to publish information, documents, images or sound recording of which the origin is unknown to the journalist. Not to suppress information or any essential elements of a story. Not to misrepresent to the journalist. Not to suppress information or any essential elements of a story. Not to misrepresent any text, document, image or sound recording, nor students or people's expressed opinions. If information is unconfirmed to clearly say so.

- d. Not to use dishonest methods to obtain information, recordings, images or documents. Not to manipulate them or have them manipulated by a third party with a view to falsification. To prohibit plagiarism in not passing off the work or ideas of others as one's own.
- e. To rectify any published information that is revealed to be factually incorrect.
- f. To respect professional secrecy and not reveal the source of any information obtained in confidence.
- g. To respect peoples' privacy insofar as the public interest does not demand otherwise. To disregard anonymous or unfounded accusations.
- h. Not to accept any advantage nor any promise, whether academic or financial, that could limit his or her professional independence or expression of opinion.
- i. To avoid as journalists any form of commercial advertising; and never to accept conditions lay down by advertisers directly or indirectly.
- j. To take journalistic directives only from designated editorial superiors; and to respect those directives only when they are not contrary to this Declaration.

SECTION 30. *Rights and privileges of a Student Publication and student journalists.* – A recognized student publication shall:

- a. Freely determine its editorial policies and manage the publication's funds upon formal recognition. A student publication is deemed established once an Editorial Board has been selected.
- b. Observe and raise queries on regular Legislative Body and General Assembly meetings of the Student Government, and on emergency meetings if invited.
- c. Observe and raise queries in University Administration's forum like "BIDahan" and other activities.
- d. Have protection from all forms of harassment and intimidation from any member of the university
- e. Have access to journalism trainings and workshops.

SECTION 31. *Plaridel Guild.* – There must be a student publication guild (guided and advised by the Office of the Student Publications) that shall:

- a. Be composed of all campus publication of the university, and shall collectively serve as a recognition body of student publications;
- b. Provide guidance and guidelines for university and all college publications and organize periodic press workshops for all student journalists;
- c. Establish and maintain relevant linkages with various offices and organizations that will promote independent journalism;
- d. Promote the development of Campus journalism by strengthening values and encourage critical and creative thinking, while fostering independence and integrity among campus journalist;
- e. Actively promote democracy, freedom of speech, freedom of assembly, and freedom to

organize and redress grievance in the University;

- 1) Involve the student journalist in issues of the students, the nation and the people;
- 2) Conduct regular meetings with all the publications to assess their issues and concerns in their publications and maintain the coherence of the guild.

SECTION 32. *Funding for the Student Publication.* – The University, while actively ensuring their independence, shall endeavor to provide adequate fund for all institutionally recognized publications through the mechanisms provided by RA 10931; if, however, the said mechanisms provided by the law will cause a funding impairment of the publication, assistance shall be requested from the University Board of Regents for that purpose. The University Board of Regents shall allocate the equivalent amount of fund billed to CHED from the University income to all student publications. Donation and other form of assistance intended for student publication are allowed.

In no instance shall the University or any of its office unreasonably withhold the release of funds sourced from income or through the RA 10931 and other sources intended for student publication should be addressed with promptitude.

SECTION 33. *Student Publication Adviser.* – A student publication may be established with an adviser, solely selected by the Editorial Board of the publication. The function of the adviser is confined to the technical aspect of the publication. Its contents shall be the exclusive domain of the editorial board.

SECTION 34. *Membership.* – A member of the publication staff must maintain his or her status as student in order to retain membership therein. A student shall not be expelled or suspended solely on the basis of articles he or she has written, or on the basis of the performance of his or her duties in the student publication.

ARTICLE VI

RIGHTS OF STUDENT-ATHLETES

SECTION 35. The Student-Athletes of the Bulacan State University invoke the applicability of Republic Act No. 10676 otherwise known as An Act Protecting the Amateur Nature of Student-Athletes in the Philippines by Regulating the Residency Requirement and Prohibiting the Commercialization of Student-Athletes.

Right to financial support. – Student-athletes shall receive one thousand (1,000.00) pesos every month and shall likewise receive an amount of ten thousand (10, 000.00) pesos as stipend every year. The amount shall be periodically reviewed considering inflation, price of goods, and the University's resources.

SECTION 36. *Other rights of a student-athletes.* – The University Administration shall actively create programs, projects, or activities which will promote the following rights of student-athletes:

- a. Right to adequate sports equipment.

- b. Right to conducive training facilities.
- c. Right to decent dormitory or accommodation.
- d. Right to access proper nutrition, diet, and supplements.
- e. Right to proper sports clothing.
- f. Right for sufficient medical attention and relevant therapy

SECTION 37. *Right to Proper Academic Consideration.* – Student athletes who missed academic activity, quizzes, and exams because of the need to attend the training, especially when an event is approaching, shall be given the right consideration and must have the right for special examination to cope up with the academic requirements. Also, they shall be excused in classes during the rigid trainings.

SECTION 38. *Right to Endorsed for Financial Support when Taking On-the-Job Training.* – Student athletes who undergo on-the-job training shall still be endorsed by the coach for financial support because they have no choice but to complete this academic requirement which requires them some time. However, once the OJT is done and the athlete has completed the required time, he/she shall go back to the training.

SECTION 39. *Right to be Recognized.* – The University Administration shall actively create programs, project, or activities which will promote the athletes of Bulacan State University.

ARTICLE VII

RIGHTS OF CULTURAL PERFORMERS

SECTION 40. The Official Cultural Performers of the University shall likewise enjoy the benefits of Republic Act No. 10676 as far as its applicability may allow.

SECTION 41. *Right to financial support.* – Cultural performers shall receive one thousand (1,000.00) pesos every month and shall likewise receive an amount of ten thousand (10, 000.00) pesos as stipend every year. The amount shall be periodically reviewed considering inflation, price of goods, and the University’s resources.

SECTION 42. *Other rights of cultural performers* - The University Administration shall endeavor to create programs, projects, or activities which will promote the following rights of cultural performers:

- Right to adequate equipment.
- Right to conducive training or practice facilities.
- Right to proper and accommodating dormitories.
- Right to access proper nutrition, diet, and supplements
- Right to proper training and performance clothing/costume.
- Right for sufficient medical attention and relevant therapy.

SECTION 43. *Right to Proper Academic Consideration.* – Cultural Performer who missed academic activity, quizzes, and exams because of the need to attend trainings, rehearsals, and the like, shall be excused from attendance, in their classes, must have the right for special examination, and to cope with lessons missed. Also, they shall be excused in classes during these times.

SECTION 44. *Right to be Endorsed for Financial Support when Taking On-the-Job Training.* – Cultural Performers who undergo on-the-job training shall still be endorsed by the coach for financial support because they have no choice but to complete this academic requirement which requires them some time. However, once the OJT is done and the athlete has completed the required time, he/she shall go back to the training.

SECTION 45. *Right to Cultural Promotion.* – The University Administration shall endeavor to create programs, project, or activities which will promote the Cultural Performers of Bulacan State University.

ARTICLE VIII RIGHTS OF ORGANIZATIONS

SECTION 46 . All student organizations, recognized or with pending recognition by the Office of the Student Organizations shall have the right to full operation capacity and reasonable independence to plan and conduct their programs, projects, and activities.

SECTION 47. Generally, all student proposed programs, projects, or activities are presumed lawful, and enjoys maximum leniency and liberality by the administration, any of its office shall limit themselves to content-neutral restriction except on those overtly criminal or against the law.

SECTION 48. Income Generating Projects (IGPs) or Activities shall be subject to oversight authority of the Office of Student Affairs. However, the IGP shall be for the benefit of student's organization and its members.

SECTION 49. All organization's programs, projects, or activities which will involve speakers, lecturers, or facilitators not from the university shall be guaranteed by the student organization as credible and trustworthy. The administration is encouraged to extend the best courtesy to those invited speaker, lecturer, or facilitator in such activities.

SECTION 50. Nothing in this document shall be interpreted to prevent the administration to impose necessary discipline to student organization offenders as circumstances may warrant, with utmost circumspection of student organizations bill of rights.

ARTICLE IX FINAL PROVISIONS

SECTION 53. *Repealing Clause.* – All student organization's resolutions, office orders, approved

other existing provisions inconsistent with this document are hereby deemed repealed or modified accordingly.

SECTION 54. *Revision Clause* – Revisions and amendment of this document can only be amended by the students.

SECTION 55. *Separability Clause*. – If for any reason any section or provision of this document is deemed void or invalid, no other section or provision shall be affected thereby.

SECTION 56. *Effectivity Clause*. – This document shall be deemed effective on the date hereof as all the signatories indicated herein have signed the same.